



Re: Formal:0098285-Jacques Francois Van Der Berg / ABSA (Banking)

From Jacques Van den berg <jacquesvdberg@yahoo.com>

Date Thu 07-May-26 5:34 PM

To Mbali Mdakane <mbali@nfosa.co.za>

Cc Ane Pretorius <ane@wjlrlaw.co.za>

 3 attachments (5 MB)

27 February marketing.pdf; 5th of March Marketing.pdf; Re_ FW_ Premature_0098285-Jacques Francois Van Der Berg _ ABSA (Banking) [ref_!00D1r01GluM.!500Si0Q3EM4_ref].zip;

Dear Ms Mokhachane,

I refer to Absa Bank's formal response dated 26 March 2026 regarding my complaint concerning persistent unsolicited direct marketing communications.

I wish to place the following facts and clarifications on record, as several aspects of the Bank's submission are either inaccurate, incomplete, or materially misleading.

1. Incorrect reference to SMS pricing notifications

The Bank states: *"We note that one of the communications the customer raised was an SMS regarding pricing changes."*

This is incorrect. My complaint was never directed at mandatory regulatory or pricing-related SMS notifications. My complaint related specifically to Absa's misuse of communication channels within the Absa mobile application, where marketing communications were repeatedly sent under incorrect categories such as "Verification" notifications. I submitted screenshots evidencing this conduct.

2. The issue was not resolved in November 2025

The Bank states my account was placed on the "ultra-sensitive" list at the end of November 2025. However, I continued receiving marketing communications after that date — which is precisely what led to legal engagement and the eventual settlement in January 2026.

3. Clarification regarding the settlement agreement

After receiving the proposed settlement agreement, both my attorneys and I requested a limited amendment acknowledging that the Bank's internal processes had failed repeatedly over an extended period. The Bank declined because it did not wish the agreement to constitute an admission of liability.

We nevertheless proceeded with the settlement to finally bring the matter to an end. I acknowledge that the signed settlement resolved all matters existing up to 26 January 2026.

However, the settlement agreement did not, and could not reasonably, waive claims arising from marketing communications sent after the date of signature, as those events did not yet exist and could

not have been known to either party.

4. The present complaint arises from new marketing communications after settlement

This is the most important issue omitted from the Bank's framing.

On **27 February 2026** — approximately 30 days after settlement — I received an unsolicited marketing email from Absa Rewards regarding the Takealot Fire Sale. A copy is attached as **Annexure A**.

I raised this with the Bank and was told it resulted from a "data extraction error." Despite that assurance, I received another communication on **5 March 2026** regarding airport lounge promotions (attached as **Annexure B**).

Accordingly, my current complaint is not an attempt to relitigate the settled January 2026 dispute. It concerns Absa's continued failure to honour my opt-out preferences even after formal complaints, legal representation, settlement negotiations, payment of legal costs, and explicit assurances that corrective measures had been implemented.

5. My relief sought

I am not seeking punitive action or excessive compensation. My position has always been straightforward: I simply want the unsolicited marketing communications to stop permanently.

I acknowledge that since 5 March 2026 I have not received further marketing, and I appreciate that the issue now appears resolved. However, my concern remains that additional marketing was still sent after settlement despite explicit assurances to the contrary.

I respectfully request that the Ombudsman consider that the post-settlement marketing communications constitute new incidents arising after resolution of the original dispute. I am happy to provide any further evidence required.

(Attachments: Annexure A – 27 February 2026 Takealot marketing email; Annexure B – 5 March 2026 lounge communication)

Kind regards

Jacques van den Berg
(+380) 99 172 0154

From: Mbali Mdakane <mbali@nfosa.co.za>
Sent: Wednesday, May 6, 2026 7:27 PM
To: jacquesvdberg@yahoo.com <jacquesvdberg@yahoo.com>
Subject: Formal:0098285-Jacques Francois Van Der Berg / ABSA (Banking)



Mr Jacques Francois Van Der Berg
jacquesvdberg@yahoo.com

Dear Mr Van Der Berg

**YOUR COMPLAINT AGAINST: ABSA - Formal
REFERENCE NUMBER: 0098285
PARTICIPANT RESPONSE RECEIVED**

We refer to the aforementioned matter.

We have received the attached response from the participant in your matter. Your matter has now been allocated to an adjudicator for assessment or further investigation if necessary.

In the meantime, and in an attempt to give both parties an opportunity to state their respective cases, we request that you read the response from the participant carefully and submit any further comment or information to us by .

Should you wish to contact the person handling your matter, you can contact them at the following email address:

mbali@nfosa.co.za and Aisha@nfosa.co.za

We will keep you updated with the progress of the matter

Yours Sincerely

Mbali Mdakane

Mbali Mdakane

Case Administrator
Banking Section

+27(0)860800900

mbali@nfosa.co.za

www.nfosa.co.za



National Financial Ombud Scheme South Africa NPC established on 1 March 2024, Registration Number 2023/162407/08, The National Financial Ombud Scheme South Africa (NFO) is recognised as an independent industry ombud scheme by the Ombud Council (OC/001/24). **JHB office:** 110 Oxford Road, Houghton Estate, Illovo, Johannesburg, 2198 **CPT office:** Claremont Central Building, 6th Floor, 6 Vineyard Road, Claremont, 7708 **Postal Address:** P.O. Box 32334, Braamfontein, 2017 **Tel:** 0860 800 900 **WhatsApp:** 066 473 0157 **Email:** info@nfosa.co.za **Web:** www.nfosa.co.za

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